

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

April 25, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Brown and Ms. Broyles, agenda item #14(f) was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on April 11, 2011. Motion (per Consent Agenda) carried.

Mr. Allen moved to approve payment of vouchers as presented, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

Mayor Kaysen opened a public hearing to receive input and comments for Fiscal Year 2011-2012 Annual Action Plan, City of Cheyenne Community Development Block Grant (CDBG) entitlement. Deanne Widauf, Housing and Community Development Office, provided an overview of the CDBG entitlement program and advised the action plan is consistent with the 5-year Comprehensive Consolidated Plan; cited some of the identified Plan goals and objectives for Fiscal Year 2011-2012, and advised the City's estimated entitlement allocation amount is \$481,610.00, which is 17% less than last year. Ms. Widauf explained the grant application process; public notifications and opportunities for input, and review and recommendations of eligible applications by the Advisory Council. She reviewed proposed recommended projects for funding, including program administration, and estimated funding allocation amount for each. Upon inquiry, Ms. Widauf provided information on the status of federal HUD funding and program administrative costs. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

"Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from AR Agricultural Residential District to MR-2 Medium Density Residential-Developing District for Block 1, Lots 6-15; Block 3, Lots 1-15 and Block 4, Lots 1-8; HR-2 High Density Residential-

Developing District for Block 1, Lots 1-5 and Block 2, Lots 1-26; a replat of a portion of Tracts 7 and 10, Dell Range Addition, 2nd Filing, Cheyenne, Wyoming, also to be known as Granite Hills Subdivision (located north of and adjacent to Carla Drive, between Ridge Road and College Drive).” Reporting for Public Services Committee, Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Motion carried. Voting “yes” -- all members of the governing body.

[CA] “Resolution approving the Cheyenne Downtown Development Authority's 2006 Market-Based Downtown Plan (Plan of Development) pursuant to Wyo. Stat. § 15-9-208.” Motion (per Consent Agenda) carried. (#5270)

“Resolution determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for the property described as a parcel(s) of land being situated in the SE1/4 of Section 11, and in the NE1/4 of Section 14, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (generally located at Interstate 25 and West College Drive).” Mr. Collins moved to adopt, seconded by Ms. Ash. Motion carried. Voting “yes” -- all members of the governing body. (#5271)

[CA] “Resolution approving the City of Cheyenne’s 2011 Annual Action Plan prepared by the Cheyenne Housing and Community Development Office” -- referred to Finance Committee (sponsors - Ms. Broyles and Mr. Pierson).

[CA] “Resolution renaming Lawana Court and Lajuana Court within Cottonwood Meadows, a replat of Lots 1 through 6, Block One, Bussard Subdivision, City of Cheyenne, Laramie County, Wyoming, as Hope Court (generally located south of Rock Springs Street and east of Monroe Avenue” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “Resolution authorizing the Mayor and the City Clerk to sign a final plat for Granite Hills Subdivision, a replat of a portion of Tracts 7 and 10, Dell Range Addition, 2nd Filing, Cheyenne, Wyoming (located north of and adjacent to Carla Drive, between Ridge Road and College Drive)” -- referred to Public Services Committee (sponsor - Mr. Collins).

Contract between the City of Cheyenne and WINhealth Partners for wellness coaching (postponed from 4-11-11). Reporting for Finance Committee, Mr. Valdez moved to approve, seconded by Mr. Brown. Mr. Valdez moved to amend by substitute agreement which indicates a term of 18 months from July 1, 2011 through December 31, 2012, seconded by Mr. Pierson. Motion to amend carried. Voting “yes” -- all members of the governing body. Discussion included family members eligible to participate in the wellness coaching program; future funding availability; employees’ contribution toward medical insurance premiums, which will be determined during consideration of the annual employee terms and conditions ordinance; claims reporting by WINhealth; measurement of program effectiveness, and relationship between WINhealth Partners medical coverage program and wellness coaching services. In response to inquiry regarding employees’ participation and contributions if the program is not funded in the future, Barb Dorr, City Treasurer, advised there is always the possibility that the premium percentage contribution by participants could increase. Upon inquiry, Judi Just, Accounting Office, reviewed recent medical claims statistics received from WINhealth and explained the major percentage of claims submitted are for City employees, not employees’ covered family members. She stated the goal of the wellness

coaching program is to reduce sick leave time and encourage healthier life styles for program participants. Tracey Peterson, WINhealth representative, clarified the wellness coaching program is a separate entity with regard to data and collection reporting and is not part of WINhealth's insurance information side, but it is still part of WINhealth, and that coaching activities and participant information will be in compliance with HIPPA requirements. Upon inquiry, Ms. Dorr reviewed the City's employee sick leave accumulation policy. It was advised the annual employee terms and conditions ordinance should be placed on the Council's agenda in May. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. (#5669)

[CA] Agreement between the City of Cheyenne and Cheyenne Umpires Association to provide umpire services for the 2011 Softball Season. Motion (per Consent Agenda) carried. (#5670)

[CA] Agreement between the City of Cheyenne and Josh Cossitt to provide tennis services and instruction for the 2011 season. Motion (per Consent Agenda) carried. (#5671)

[CA] Agreement between the City of Cheyenne and Lipizzaner Stallions, Inc. for Lipizzaner Stallion Show at the City of Cheyenne-owned Ice and Events Center. Motion (per Consent Agenda) carried. (#5672)

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for the 2011-2012 Concert Season. Motion (per Consent Agenda) carried. (#5673)

Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for Youth Education Concerts. Upon inquiry, Kim Lovett, Executive Director, Cheyenne Symphony Orchestra, advised the agreement provides for 2 concerts offering an opportunity for student education and participation in music. Mr. Valdez moved to approve, seconded by Mr. Pierson. Upon inquiry, Ms. Lovett advised agreement funding in the amount of \$6,585.00 assists with defraying some of the performance costs, including payment of professional musicians. Concern was expressed with use of City funds for the performances, and the respective roles and responsibilities of the City vs. the school district involving this type of educational program. Ms. Lovett provided information on funding and support of music education through the school district. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Collins voting "no". (#5674)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and William Linden for crime victim assistance services (Victim Services grant). Motion (per Consent Agenda) carried. (#5675)

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and Laramie County School District #1 to provide transportation services for 2011 Summer Recreation Camp. Motion (per Consent Agenda) carried. (#5676)

[CA] Easement Agreement between the City of Cheyenne and Union Pacific Railroad Company for permission to construct, use, maintain, repair and renew a portion of East Cheyenne Greenway

Extension (Phase IIb-Part 2) located on, along and across Union Pacific Railroad Company property. Motion (per Consent Agenda) carried. (#5677)

[CA] Cooperative Agreement between the City of Cheyenne and Wyoming Department of Transportation for permanent pavement markings at all railway crossings on City streets (Federal funds). Motion (per Consent Agenda) carried. (#5678)

[CA] Professional Services Agreement between the City of Cheyenne, Parks and Recreation Department, and The Design Studio, Inc. for renovation and expansion of the Conservatory/Greenhouse at Cheyenne Botanic Gardens (1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$749,910.00). (#5679)

[CA] Contract for Professional Engineering services between the City of Cheyenne, Engineering Department, and Ayres Associates for Lake Minnehaha Remediation Plan Project at Holliday Park (DEQ grant). Motion (per Consent Agenda) carried (amount not to exceed \$39,683.00). (#5680)

[CA] Agreement between the City of Cheyenne, and King Ranch Company, L.P., for the lease of certain lands located at the City Landfill for grazing purposes -- referred to Finance Committee.

[CA] Safe Routes to School Project Agreement between the City of Cheyenne and the Wyoming Department of Transportation for the Arp Elementary Pathway Project (1% Specific Purpose Sales and Use Tax and WYDOT funds) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5650 between the City of Cheyenne, Parks and Recreation Department, and Superior Electric to provide electrical correction and install new wire to three scoreboards for Brimmer Park (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$9,812.80). (#5650)

Contract Modification No. 1 to Contract No. 5394 between the City of Cheyenne, Public Works Department, Facilities Maintenance Division, and Ameri-Tech HVAC Services to exercise the option clause extending the current contract for mechanical, heating, ventilating, and air conditioning system maintenance for City buildings. Mr. Brown declared a conflict of interest (business interest) and vacated Council Chambers. Mr. Valdez moved to approve, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers. (#5394)

[CA] Consideration of Bid #R-24-11 for one new 2011 pick-up truck with two wheel drive for Public Works Department, Traffic Division, from Spradley Barr Motors, Inc. of Cheyenne, Wyoming (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$34,552.00).

[CA] Consideration of Bid #R-26-11 for furnishing 700 95-gallon and 200 65-gallon automated refuse carts for the Public Works Department, Sanitation Division -- referred to Finance Committee.

[CA] Consideration of Bid #R-25-11 for three new 2011 Polaris Ranger Crew 800 utility terrain vehicles from Polaris Suzuki of Cheyenne, Wyoming for the Police Department (2010 Byrne Justice Assistance Grant) -- referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Re-o-na Sushi and Thai d/b/a Re-o-na Sushi Bar and Thai Cuisine, 112 W. 17th St., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the 2011 Wyoming Association of Municipalities Annual Convention. Motion (per Consent Agenda) carried (Mayor Richard L. Kaysen, Official Voting Delegate; Councilman Jack R. Spiker, Alternate Delegate).

Appointment of Chuck Otto to the Greenway Advisory Committee. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Announcement was made of the Appointment of Rolfe Burgess to the Cheyenne Planning Commission, and Nathaniel T. Steinhoff to the Community Action of Laramie County Board of Directors, to be confirmed May 9, 2011.

Announcement was made of a Public Hearing to be held May 9, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a restaurant liquor license application filed with the City Clerk's Office for 888 Mr. Hibachi, LLC d/b/a Mr. Hibachi, 1439 Stillwater Avenue, Suites 1 and 2, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held Monday, May 9, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public comments and input on the proposed amendment to the Major Street Plan Official Map 2003 by updating the Official Map with newly platted and built roads, and by adding U.S. Highway 30 and Dell Range Boulevard intersection, East Pershing Boulevard and Christensen Road intersection, and U.S. Highway 30 and Christensen Road intersection details.

Announcement was made of a Public Hearing to be held Monday, May 9, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public comments and input on the City's intent to submit a grant request to the Wyoming Business Council for a Business Ready Communities, Business Committed Grant, for pedestrian improvements to West Lincolnway, and streetscape improvements on West 17th Street, Thomes and Pioneer Avenues adjacent to Block 392, Original City, Cheyenne, Wyoming.

Mayor Kaysen recognized youth in attendance at the meeting.

Under other business, Dallas Lain, speaking on behalf of the Board of Post 6 Legion Baseball, provided an update with regard to a meeting and discussions concerning the agreement between the City and Post 6 for use of Powers Baseball Field (City Clerk note: Agenda item

(Resolution) was postponed for 30 days at the April 11, 2011 City Council meeting). She expressed appreciation to City Attorney Dan White and Todd Thibodeau, Planning and Grants Manager, State Parks, Historical Sites and Trails Division, for meeting with Post 6 Board members, and advised they had a very productive meeting. Affiliated with discussions concerning requirements under the Land and Water Conservation grant funding the City had received to assist with construction of Powers Field, she stated Post 6 has submitted a proposal to the City by the April 22nd deadline, stating Post 6 has tried to come up with a proposal that is fair, equitable, honorable, and “what is right” in order to move forward with opportunities for all area youth to participate in baseball programs. Upon inquiry, Dan White, City Attorney, advised no final decision has been made to date on the Post 6 proposal, and Rick Parish, Director, Parks and Recreation Department, stated review of the proposal with Mr. Thibodeau for his response would be conducted. Mayor Kaysen advised the agenda item would be back on the City Council’s May 9th agenda to be referred back to Finance Committee, which will meet on May 16, 2011 at 11:00 a.m. Upon inquiry, Ms. Lain reviewed the essential elements of the proposal that Post 6 submitted, which includes completion of a second Blue Ribbon baseball field at the current site, as initially conceptualized, and sidewalks, and advised there was no written contract for a second field, but it was portrayed in drawings utilized during fund raising efforts for Powers Field. Upon inquiry, Mr. Parish reviewed dirt moving and rough grading activities that had occurred during construction; stated a conceptual master plan had been drawn up that determined two fields could at some point be configured in the area, and commented on the importance of lighting if a second field was built. Phil Maggert, Post 6 Board member, stated the proposal is not a threat; that Post 6 looked at value to the community and a win situation in building a second field, and commented on the benefits of the City and Post 6 working together to resolve issues.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:55 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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